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Union Access to Migrant Farmworkers: The Mt. Olive Pickle Company, Cucumber Farmers, and Farmworkers*

Allison Kidd**

I. Introduction

*De colores, de colores se visten los campos en la primavera.
De colores, de colores son los pajarillos que vienen de afuera.
De colores, de colores es el arco iris que vemos lucir.
Y por eso los grandes amores de muchos colores me gustan a mi.*¹

"De Colores," or "All the Colors," is the anthem of César E. Chávez's United Farmworkers of America.² The song is one of celebration.³ While California's farmworkers recently sang to celebrate the passage of new worker protection legislation,⁴ farmworkers in other parts of the country, particularly in the southeastern states, have had few occasions for celebration.

Securing union organizers' ability to access migrant labor camps and workers' rights to associate with organizers can pave the way for impressive changes in farm labor conditions. Access is vital to the organizing effort; however, in states like North Carolina, union organizers have had very limited, if any, access to migrant labor camps.⁵ Few states have addressed the issue of union access to migrant labor camps directly, but existing case law and analogy to National Labor Relations Act litigation suggest that now is the time to formally recognize such

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1. County of Los Angeles Public Library, *De Colores* (2001), available at <http://www.colapublib.org/chavez/decolores.htm> (last visited Dec. 21, 2003). *De Colores* is a traditional Mexican Folk Song. In English, the lyrics are

Of colors, colors the fields in the spring get dressed.
Of colors, colors they are the pajarillos [small birds] that come from outside.
Of colors, colors it is the rainbow that we see shine.
And for that reason the great loves of many colors, they (the colors) please me.

Id.

2. *Id.*

3. *Id.*

4. See Mark Martin, *Farm Workers Get Boost from Davis*, SAN FRANCISCO CHRONICLE, Oct. 1, 2002, at A1.

5. See *infra* notes 147–58 and accompanying text.

rights. Until that happens, leading agricultural giants, following the example of North Carolina's Mt. Olive Pickle Company, are in a unique position to require that their growers and suppliers enforce access rights even under existing law. Corporate commitments of this type could dramatically improve working conditions, while protecting growers' interests in a timely harvest and orderly working environment.

A. *Farm Labor Conditions*

Today, life as a farmworker can resemble the sharecropping of days long past. Most farmworkers live below the poverty line.⁶ Three-quarters of the nation's farmworkers earn less than \$10,000 per year and half earn less than \$7,500.⁷ In addition to earning low wages, farmworkers face hazardous working conditions. The work on a farm is labor-intensive and marked by long hours in the fields.⁸ Workers are exposed to pesticides, have high accident and fatality rates, and lack basic amenities such as bathroom facilities and adequate drinking water in the fields.⁹ Injured farmworkers often lack any form of health care.¹⁰

These problems are even more acute in North Carolina than in most other states. North Carolina is home to the fifth largest number of farmworkers in the country¹¹ and "leads the nation in Hispanic 'guest workers' or seasonal farmworkers."¹² In addition, the state is the second-largest producer of pickling cucumbers in the United States.¹³ However, the working conditions do not reflect the value of farmwork-

6. Legal Aid of North Carolina, Farm Worker Unit, *Farm Workers, the Law, and North Carolina*, available at <http://www.legalaidnc.org/Programs/FWU/ncfarlegal.htm> (last visited Jan. 29, 2004) (hereinafter Legal Aid of North Carolina, *Farm Workers*).

7. *Id.*

8. *Id.*

9. Legal Aid of North Carolina, *Farm Workers*, *supra* note 6. See David Olson, *State Probes Complaints of Mexican Workers*, NEWS & OBSERVER (Raleigh), Jun. 27, 2002, at B4. See, e.g., *Palmer v. Jackson*, 2000 WL 1862631 (N.C. Ind. Com. Nov. 29, 2000) (describing a North Carolina farmworker's heatstroke resulting from lack of proper drinking water).

10. See LATINO HEALTH TASK FORCE & NORTH CAROLINA INSTITUTE OF MEDICINE, NC LATINO HEALTH 2003 128-29 (Feb. 2003), available at <http://www.nciom.org/projects/latino/latinopub/fullreport.pdf>.

11. Legal Aid of North Carolina, *Farm Workers*, *supra* note 6 (citing NORTH CAROLINA EMPLOYMENT SECURITY COMMISSION, JOB SERVANT, Winter 2000).

12. Jeffrey S. Hampton, *Plan to Open New Hispanic Center Draws Criticism*, THE VIRGINIAN-PILOT, Mar. 23, 2003, at Y1 (quoting Matty Lazo-Chadderton, director of Hispanic-Latino Affairs for Sen. Basnight's office). North Carolina is host to over 12,000 migrant seasonal workers. Videotape: HELP WANTED: FARM WORKERS IN NORTH CAROLINA (Burning Tree Productions 2001) (hereinafter HELP WANTED). In addition, 10,000 of the nation's 45,000 guest workers labor in North Carolina. Olson, *supra* note 9. "Approximately half of the 10,000 H-2A workers in North Carolina harvest cucumbers processed by the Mt. Olive Pickle Company in Mount Olive, North Carolina." *Human Rights Watch, Unfair Advantage: Workers' Freedom of Association in the United States Under International Human Rights Standards* § V (Aug. 2002), available at http://www.hrw.org/reports/2000/uslabor/USLBR008-07.htm#P791_193474.

13. Mt. Olive Pickle Company, Company Fact Sheet Regarding the FLOC Boycott (2002), available at <http://www.mtolivepickles.com/Company/FLOC005.html>.

ers' contribution to North Carolina's economy. Even though each North Carolina farmworker's labor contributes over \$12,000 in profits to the agricultural industry,¹⁴ some still earn less than minimum wage.¹⁵ Almost half of North Carolina's farmworkers cannot afford enough food for their own families and 15 percent are forced to cut the size of their children's meals or skip meals.¹⁶ Making farm labor even more difficult, the employer/employee relationship is marked by dependence, with the majority of North Carolina's migrant farmworkers living in employer-provided housing.¹⁷

In March 1999, an ongoing and heated debate began over the question of who bears responsibility for improving the conditions of farm work. That month, North Carolina's Mt. Olive Pickle Company¹⁸ declined to negotiate with thousands of North Carolina farmworker members of the Farm Labor Organizing Committee (FLOC),¹⁹ an AFL-CIO member labor organization that has organized migrant farmworkers since 1967.²⁰ For the next five and a half years, the company was the target of a boycott by the state's farmworkers, university students, churchgoers, and other concerned community members.²¹ The boycott

14. HELP WANTED, *supra* note 12.

15. See Legal Aid of North Carolina, Farm Worker Unit, *NC's Farm Workers, Cucumbers*, available at <http://www.legalaidnc.org/Programs/FWU/ncfarwkcukes.htm> (last visited Dec. 21, 2003). Pursuant to their September 2004 agreement, farmworkers employed by Mt. Olive's growers and suppliers are guaranteed \$8 an hour. Kristin Collins, *Union Seeks Workers' Trust*, NEWS & OBSERVER (Raleigh), Nov. 14, 2004.

16. Press Release, Wake Forest University, N.C. Latino Farm Workers Can't Afford Sufficient Food, Wake Forest Study Shows (Mar. 6, 2003), available at http://www.wfubmc.edu/news_sys/fullstory.php?articleid=3821.

17. Legal Aid of North Carolina, Farm Worker Unit, *Access to Services*, available at <http://www.legalaidnc.org/Programs/FWU/ncfaraccess.htm> (last visited Jan. 8, 2004) (hereinafter Legal Aid of North Carolina, *Access*). For an in-depth discussion of the poor quality of farmworker housing, see Sally A. Carter & Roger C. Rosenthal, *Migrant Farm Worker Housing: An American Tragedy, an American Challenge*, 30 CLEARINGHOUSE REV. 781, 781-98 (Dec. 1996).

18. Mt. Olive is the second best-selling brand of pickles in the nation and is the number one brand in the southeast. The company produces its pickles, relishes, and other products in Mt. Olive, North Carolina and purchases from North Carolina farmers one-third of the 100 million pounds of cucumbers it uses annually. Mt. Olive Pickle Company, *Our Company at a Glance* (2002), available at <http://www.mtolivepickles.com/Company.html> (last visited Jan. 8, 2004) (hereinafter Mt. Olive Pickle Co., *Company*).

19. See Farm Labor Organizing Committee, Farm Labor Organizing Committee (Jan. 1, 2002), available at <http://www.iupui.edu/~floc/> (hereinafter Farm Labor Org. Comm., FLOC). In the first two years of the boycott, 2,000 migrant workers in North Carolina signed union cards. Farm Labor Organizing Committee, *The FLOC Organizing Campaign in North Carolina* (Jan. 1, 2002), available at <http://www.iupui.edu/~floc/nc.htm>. Today, 3,700 union cards have been signed. Collins, *supra* note 15. Of course, farmworker unions must begin organizing again each season as farmworkers are mobile. See Alex Pulaski, *Farm Workers' Talks with Norpac Bog Down*, THE SUNDAY OREGONIAN, Sept. 1, 2002, at E1.

20. *The Power of Organizing Securing Farm Workers' Rights: An Interview with Baldeemar Velasquez*, MULTINATIONAL MONITOR, May 1993, at 14.

21. *Id.* Though union activists' picketing of grocery stores ordinarily would have been an illegal secondary boycott, FLOC boycott participants were careful to make clear

focused attention on a prominent corporation in a highly nonunionized²² and important agricultural state.²³ On September 16, 2004, the boycott finally came to an end when FLOC and Mt. Olive entered into an agreement to end the boycott and FLOC and the North Carolina Growers' Association signed a historic collective bargaining agreement allowing the union to oversee the employment of 8,000 farmworkers on more than 1,000 farms.²⁴ The deal marked the largest unionization in North Carolina history²⁵ and made North Carolina farmworkers the first guest workers in the United States ever to win union representation and a contract.²⁶

Tension between farmworkers, farmers ("growers"), and the corporations that purchase farm products ("processors") is not unique to North Carolina, but the way the conflict is settled in North Carolina can set the stage for resolving conflicts in other parts of the country. Already, union organizers and academics have begun to suggest that agreements similar to the September 2004 FLOC agreement could be achieved in the tobacco industry in states like Tennessee, Kentucky, and Virginia; in the cucumber industry in Florida; and, eventually, even in the poultry, landscaping, and construction industries.²⁷ While Mt. Olive has been credited with bringing together farmworkers and growers,²⁸ one of the company's earliest, and most important, contributions was its decision to require signed Statements of Compliance from its North Carolina suppliers and growers beginning in the 2003 growing

they were boycotting the Mt. Olive line of products and not the grocery stores. Such activity is permitted under "*Tree Fruits*." NLRB v. Fruit & Vegetable Packers & Warehousemen Local 760, 377 U.S. 58, 55 L.R.R.M. (BNA) 2961 (1964). In the 1970s and 1980s, FLOC boycotted the Campbell Soup company for eight years, producing "landmark labor agreements with 28 tomato and cucumber farmers in Ohio and Michigan" and labor pacts with the Vlastic, Heinz, and Dean Foods companies. Alison Grant, *Pickle Boycott Coming to NE Ohio*, PLAIN DEALER (Cleveland), Feb. 14, 2003, at C1.

22. North Carolina has the lowest percentage of union workers in the nation. Analisa Nazareno, *Downturn Hurts the Unions Too*, SAN ANTONIO EXPRESS-NEWS, Feb. 15, 2003, at 4H.

23. The union reported that, as a result of its efforts, 119 Kroger supermarkets from Toledo to Wheeling, West Virginia, and one Wal-Mart pulled Mt. Olive products from their shelves. Leana Donofrio, *Kent State U. Students Protest Mt. Olive Pickles at Grocery Store*, UNIVERSITY WIRE, Apr. 7, 2003.

24. Mt. Olive Pickle Company, *Boycott of Mt. Olive Ends* (Sept. 16, 2004), available at <http://www.mtolivepickles.com/Company/Press013.html> (hereinafter Mt. Olive Pickle Co., *Boycott Ends*); Farm Labor Organizing Committee, *Precedent Setting Agreement Reached, Mt. Olive Pickle Boycott Over* (Sept. 16, 2004), available at http://www.floc.com/html/News_PR/press/0917mtolive.html (hereinafter Farm Labor Org. Comm., *Precedent*).

25. Estes Thompson, *Farmers, Labor and Mt. Olive Sign Union Deal*, CHARLOTTE OBSERVER, Sept. 17, 2004.

26. Farm Labor Org. Comm., *Precedent*, *supra* note 24.

27. Julie M. McKinnon, *FLOC Sets Its Sights on Future Fights*, THE BLADE (Toledo, OH), Oct. 3, 2004.

28. Collins, *supra* note 20.

season.²⁹ The Statements required the farmers working with Mt. Olive to “indicate that . . . [they we]re in compliance with all applicable federal and state laws governing farmworker employment. . . .”³⁰ This article encourages other companies to make similar commitments and posits that union access to migrant farmworkers is a necessary part of any grower’s or supplier’s promise to comply with all applicable laws.

B. *Organization*

In its first part, this article examines laws governing union access to private employers’ property. It looks first at National Labor Relations Act (NLRA) litigation that has defined the prevailing access standards and indicated how courts should balance employers’ property rights against employees’ right to free association. Because the NLRA does not cover farmworkers, this article next discusses the influence that NLRA case law has on the reasoning and standards state courts apply to the question of union access to migrant farmworkers. In its final part, this article examines the conflict between FLOC organizers and Mt. Olive to help frame the issues involved in the access debate. This article will show that access for union organizers is a necessary part of any growers’ or suppliers’ commitment to abide by all applicable laws.

II. Union Access to Private Employer Property

“Access or nonaccess to employees at the workplace is frequently a threshold concern in an organizing campaign.”³¹ In North Carolina, union access to migrant labor camps will help determine FLOC’s continued success in organizing the state’s farmworkers. Although farmworkers are excluded from the NLRA, case law related to the Act provides the most complete framework for thinking about union access issues. This framework has been influential on state and federal courts addressing the more narrow issue of union access to migrant labor camps.³²

A. *Union Access Rights Under the National Labor Relations Act*

Essentially, the rule of union access is one of balancing competing interests—employees’ section 7, 29 U.S.C. section 157, rights of self-

29. See Mt. Olive Pickle Company, Statements of Compliance, *available at* <http://www.mtolivepickles.com/Company/FLOC008.html> (last visited Feb. 16, 2005) (hereinafter Mt. Olive Pickle Co., Compliance); Press Release, Mt. Olive Pickle Company, Duke University Lifts Boycott (Aug. 29, 2002), *available at* <http://www.mtolivepickles.com/Company/Press003.html> (hereinafter Mt. Olive Pickle Co., Duke).

30. Mt. Olive Pickle Co., Duke, *supra* note 29.

31. THE DEVELOPING LABOR LAW: THE BOARD, THE COURTS, AND THE NATIONAL LABOR RELATIONS ACT, ABA SECTION OF LABOR AND EMPLOYMENT LAW 96 (Patrick Hardin & John E. Higgins Jr. eds., 4th ed. 2001) (hereinafter Hardin & Higgins).

32. See *infra* Part IIB.

organization and employers' rights to maintain discipline at the workplace and exercise sovereignty over their own property.³³ While decisions on how to strike this balance have varied over time, the Supreme Court set the current standard in *Lechmere, Inc. v. NLRB*.³⁴

1. The Supreme Court's Interpretation of Union Access Rights

In *NLRB v. Babcock & Wilcox Company*, the Court first recognized an exception to the rule that no employer could be forced to allow union organizers access to the place of employment.³⁵ The Court decided that "the NLRA may, in certain limited circumstances, restrict an employer's right to exclude nonemployee union organizers from his property."³⁶ The Board applied this exception using a multifactor balancing test weighing section 7 rights against private property rights and viewing any alternate means available to a union to access employees as "an 'especially significant' consideration."³⁷

In *Lechmere*, the Court applied *Babcock* for the first time since 1956, interpreting *Babcock's* method of analysis for access rights cases differently than had the Board.³⁸ The union in *Lechmere* tried contacting employees of a retail store in a strip mall through newspaper advertisements but, when that failed, placed leaflets on employees' cars³⁹ in defiance of a store rule prohibiting all solicitation on company property.⁴⁰ The NLRB applied the prevailing balancing test, finding that the employer violated section 8(a)(1), 29 U.S.C. section 158(a)(1), when it expelled the union from its property.⁴¹

The Supreme Court disagreed, setting a new standard for determining which employer activities "interfere" with a union's section 7 rights.⁴² The Court criticized the NLRB's failure to distinguish in its balancing between employee and nonemployee union activity, saying that the balancing test should be used only for employee activity.⁴³ Furthermore, it clarified that the Board's balancing test should be used

33. See generally Hardin & Higgins, *supra* note 31, at 97–117 (discussing early case law in this area).

34. See *Lechmere, Inc. v. NLRB*, 502 U.S. 527, 1393 L.R.R.M. (BNA) 2225 (1992); Hardin & Higgins, *supra* note 31.

35. *Lechmere*, 502 U.S. at 532 (citing *NLRB v. Babcock & Wilcox Co.*, 351 U.S. 105, 112–13, 38 L.R.R.M. 2007 (1956)).

36. *Id.* (citing *Babcock*, 351 U.S. at 113).

37. See *id.* at 538; see also *Jean Country*, 291 N.L.R.B. 11, 14–15, 129 L.R.R.M. (BNA) 1201 (1988).

38. *Lechmere*, 502 U.S. at 538; see *Babcock*, 351 U.S. 105.

39. *Lechmere*, 502 U.S. at 529.

40. *Id.* at 530.

41. *Lechmere, Inc.*, 295 N.L.R.B. 92, 131 L.R.R.M. (BNA) 1480 (1989) (using the test from *Jean Country*, 291 N.L.R.B. at 19). The First Circuit affirmed the Board's ruling. *Lechmere, Inc. v. NLRB*, 914 F.2d 313, 135 L.R.R.M. (BNA) 2329 (1st Cir. 1990).

42. See *Lechmere*, 502 U.S. at 527–41.

43. *Id.* at 527.

only upon a threshold finding that "the location of a plant and the living quarters of the employees place the employees beyond the reach of reasonable union efforts to communicate with them."⁴⁴ In the absence of such a finding, an employer's private property rights presumptively trump any union rights; therefore, nonemployee union organizers have no right to access an employer's private property.⁴⁵

It is difficult for a union to make the threshold finding required by the Court.⁴⁶ As the Court explained, a union's burden to prove lack of access is "a heavy one."⁴⁷ Union access is guaranteed only in cases where employees work at remote locations, such as logging camps⁴⁸ and cruise ships; are housed on the employer's premises; or are at self-contained, and often seasonal, workplaces like fish canneries and resort hotels.⁴⁹ Whenever employees live off the employer's property, "they are presumptively not 'beyond the reach'" of the union.⁵⁰

If a union gains access to employer property under *Lechmere*, the employees have a presumptive right to speak with union representatives during nonworking time in nonworking areas.⁵¹ For example, the NLRB will allow an employer to impose a rule prohibiting solicitation during working hours because such a rule implies that solicitation will be allowed during nonworking hours.⁵² Even if a "no solicitation" rule is valid on its face, an employer's discriminatory enforcement of that rule still constitutes an unfair labor practice.⁵³ Similarly, an employer's decision to promulgate a "no solicitation" rule for the first time during labor organizing efforts may refute the validity of that rule on its face.⁵⁴

2. Exclusion of Agricultural Workers from NLRA Protections

Unfortunately, while Senator Robert Wagner, the author of the NLRA, included agricultural workers in the first version of the pro-

44. *Id.* at 539 (quoting *Babcock*, 351 U.S. at 113).

45. *See id.* at 533-34, 538.

46. *See id.* at 535.

47. *Id.* (quoting *Sears, Roebuck & Co. v. Carpenters Dist. Council*, 436 U.S. 180, 205, 98 L.R.R.M. 2282 (1978)).

48. *Id.* at 539. *See, e.g.*, *NLRB v. Lake Superior Lumber Corp.*, 167 F.2d 147, 21 L.R.R.M. (BNA) 2707 (6th Cir. 1948) (invalidating the employer's restrictions limiting union organizers' access to the labor camp's recreation hall to just one day a week).

49. *Hardin & Higgins*, *supra* note 31 at 99 (citing *Chugach Alaska Fisheries*, 295 N.L.R.B. 44 (1989); *NLRB v. S&H Grossinger's Inc.*, 372 F.2d 26 (2d Cir. 1967)).

50. *Lechmere*, 502 U.S. at 540 (citing *Babcock*, 351 U.S. at 113).

51. *See Westinghouse Elec. Corp.*, 240 N.L.R.B. 905, 100 L.R.R.M. (BNA) 1391 (1979), *aff'd*, 612 F.2d 1072, 103 L.R.R.M. (BNA) 2171 (8th Cir. 1979).

52. *See Our Way Inc.*, 268 N.L.R.B. 394, 115 L.R.R.M. (BNA) 1009 (1983).

53. The 6th Circuit defined "discrimination" as "favoring one union over another, or allowing employer-related information while barring similar union-related information." *Albertson's, Inc. v. NLRB*, 301 F.3d 441, 451, 170 L.R.R.M. (BNA) 2769 (6th Cir. 1996).

54. *See, e.g.*, *Ward Mfg. Inc.*, 152 N.L.R.B. 1270, 59 L.R.R.M. (BNA) 1325 (1965).

posed Wagner Act, they were excluded in the final, 1935 version.⁵⁵ At the time of the exclusion, Representative Connery stated, “[w]e hope that the agricultural workers will be taken care of. . . . [T]here will be opportunity later, and I hope soon, to take care of agricultural workers.”⁵⁶ Sixty-nine years later, no one has fulfilled Representative Connery’s wishes, and agricultural workers continue to be excluded from the definition of “employees” under the NLRA.⁵⁷

The effects of the agricultural worker exclusion are extensive.⁵⁸ Predictably, the effect on workers is negative. The law does not protect farmworkers who join unions for the purpose of collective bargaining.⁵⁹ Growers have no obligation to bargain with a union representing their farmworkers.⁶⁰ A grower may fire a farmworker for union activity and may refuse to employ farmworkers associated with, or even sympathetic to, unions.⁶¹ Less predictably, the agricultural workers’ exclusion has negative effects on growers. They are not protected from secondary boycotts or “recognition” picketing and are deprived of an additional means of enforcing “no strike” agreements with farmworkers.⁶² A union could picket those who do business with the grower, picket the grower as a way of preventing the farmworkers from entering the fields, or call for a strike at any time and for any reason.⁶³

Agricultural workers are not currently forbidden from engaging in collective bargaining.⁶⁴ Likewise, while growers have no duty to bargain under sections 8(a)(5) and 8(b) of the NLRA, they may choose to do so.⁶⁵ Gaining access to farmworkers is the first step toward encouraging agricultural growers and processors to engage in collective bargaining, a process that ultimately could benefit both.

B. *Union Access Rights for Farmworkers Under State and Federal Law*

“In many states . . . [,]” like North Carolina, “the farmworkers’ right to receive visitors in a migrant labor camp is not firmly estab-

55. See Representative Thompson, House of Representatives, Coverage of Agricultural Employees Under the National Labor Relations Act, 90th Cong., 2d Sess., Report No. 1274 to accompany H.R. 16014 (1968), 2.

56. *Id.*

57. See 29 U.S.C. § 152(3) (1998); *Holly Farms Corp. v. NLRB*, 517 U.S. 392 (1996).

58. Thompson, *supra* note 55 at 3.

59. *Id.*

60. *Id.*

61. *Id.* The “Migrant and Seasonal Agricultural Worker Protection Act (AWPA) should prohibit employers from retaliating or discriminating against workers for their union membership, labor organizing or similar activities to protect workers’ interests.” Farm Worker Justice Fund, Inc., *A Vision for the Future of Policy on Farm Workers*, available at <http://www.fwjjustice.org/end.htm> (last visited Feb. 16, 2005). However, guest workers under the H-2A program are excluded from AWPA. See *id.*

62. Thompson, *supra* note 55 at 3.

63. See *id.* at 3–4.

64. See Dist. 50 United Mine Workers of America, 142 N.L.R.B. 930, 53 L.R.R.M. 1178 (1963).

65. See *NLRB v. Wooster Div. of Borg-Warner Corp.*, 356 U.S. 342, 349, 42 L.R.R.M. 2034 (1958).

lished.⁶⁶ North Carolina courts have not addressed the issue of union access to migrant farmworker camps directly, nor has the state enacted an agricultural labor relations act. When eventually faced with the issue, North Carolina courts are likely to consider other jurisdictions' approaches to the access question. A number of federal courts and the states of California, Florida, Maryland, Michigan, New Jersey, New York, and Washington⁶⁷ all recognize migrant farmworkers' rights to receive visitors, including union organizers.⁶⁸ However, the theory on which jurisdictions base this right varies.⁶⁹ Most decisions grant union organizers access to migrant labor camps on either a property law or constitutional rights theory.⁷⁰ The property law jurisdictions find that, as tenants, migrant farmworkers "enjoy the rights of free ingress and egress."⁷¹ Constitutional law jurisdictions, including most of the federal courts that have addressed the issue, base union access on the rights of free speech and association.⁷² Still other courts have observed a public policy rationale for allowing union access to migrant labor camps.⁷³ As one federal court summarized,

Whether the court regards the question of access to migrant labor camps as one of constitutional law, the rights surrounding the ownership of real property or the rights of tenants in relation to their landlord, the law compels a single conclusion. The fundamental underlying principle is simply that real property ownership does not vest the owner with dominion over the lives of those people living on his property.⁷⁴

1. Union Access Rights Grounded in Property Law

Under the older common law, those who receive free housing are not tenants with property rights, but instead are servants.⁷⁵ However, common law eventually tempered this view with the maxim *sic utere tuo ut alienum non laedas*, meaning that one should use his property so as not to injure the rights of others.⁷⁶ That maxim laid the ground-

66. Cynthia G. Schneider, *Farm worker Law Developments 1995-96*, 30 CLEARINGHOUSE REV. 1168, 1177 (Mar.-Apr. 1997).

67. California has an Agricultural Labor Relations Act, in many ways more union-oriented than the National Labor Relations Act, which governs access and organizing issues in the state. "In addition to very liberal on-site access to workers, unions [in California] are entitled to a list of employees to facilitate its efforts to petition the A[gricultural] L[abor] R[elations] B[oard] for a representation election." Michael H. LeRoy & Wallace Hendricks, *Should "Agricultural Laborers" Continue to Be Excluded from the National Labor Relations Act?* 48 EMORY L.J. 489, 531 (Spring 1999).

68. See 67 OP. ATT'Y GEN. MD. 64 (1982).

69. See *id.*

70. See *id.*

71. *Id.* at n.4.

72. *Id.*

73. See *State v. Shack*, 58 N.J. 297, 77 L.R.R.M. (BNA) 2408 (N.J. Sup. Ct. 1971).

74. *Folgueras v. Hassle*, 331 F. Supp. 615, 625 (S.D. Mich. 1971).

75. Schneider, *supra* note 66 at 1177.

76. *Shack*, 58 N.J. at 305.

work for tort and property law recognizing that "necessity, private or public, may justify entry upon the lands of another."⁷⁷

Today, courts increasingly recognize farmworkers who receive housing as tenants and not as servants.⁷⁸ As tenants, farmworkers have all the rights of tenants in traditional landlord-tenant relationships, including the right to receive visitors and invite others onto the premises.⁷⁹ Even when farmworkers do not pay for their housing directly, it usually is considered part of their compensation and does not disqualify them from receiving "tenant" status.⁸⁰

In what may be the most famous case using the property law approach to union access, the New Jersey Supreme Court balanced the interests of a farmworker-tenant and grower-landlord in a manner that seems, in some respects, to have anticipated *Lechmere*.⁸¹ In *State v. Shack*,⁸² a grower pursued trespass charges against a legal services attorney and a representative of a non-profit farmworker health care organization after they demanded to see farmworkers outside the presence of the grower.⁸³ The court explained that the lack of alternate forms of communication with migrant farmworkers living on growers' property was key to its decision allowing access.⁸⁴ Unlike *Lechmere*, however, the court did not restrict its balancing to the property rights of the grower and statutory rights of the employee.⁸⁵ In *State v. Shack*, the court recognized and balanced the property interests of both parties.⁸⁶

Other states, including New York and Michigan, approach the issue of union access in a similar way.⁸⁷ Former New York Attorney General Robert Abrams issued an advisory opinion on the right of access to migrant labor camps, suggesting that farmworkers are entitled to receive visitors during nonworking hours "without any interference

77. *Id.*

78. For example, the Washington Supreme Court held that when farmworkers pay \$2.75 per day to live at the farmer's camp, they are tenants. *State v. Fox*, 82 Wa. 2d 289, 291, 83 L.R.R.M. (BNA) 3053 (Wash. 1973).

79. See *Folgueras*, 331 F. Supp. at 625; *Shack*, 58 N.J. at 307.

80. See *Folgueras*, 331 F. Supp. at 624; *Maine v. DeCoster*, 653 A.2d 891, 894 (Me. 1995).

81. See *Shack*, 58 N.J. at 306. This decision is most famous for its public policy rationale supporting union access, discussed *infra* Part II.B.3.

82. 58 N.J. at 297.

83. *Id.* at 299-300.

84. "Since the migrant workers are outside the mainstream of the communities in which they are housed and are unaware of their rights and opportunities and of the services available to them, they can be reached only by positive efforts tailored to that end." *Id.* at 304.

85. *Id.* at 306.

86. *Id.*

87. See *Folgueras*, 331 F. Supp. at 624; Lori Nessel & Kevin Ryan, *Migrant Farm Workers, Homeless and Runaway Youth: Challenging the Barriers to Inclusion*, 13 LAW & INEQ. J. 99, 128 (Dec. 1994) (citing former New York Attorney General Robert Abrams' advisory opinion on the right of access to migrant labor camps).

from the growers."⁸⁸ In Michigan, the U.S. District Court for the Western District considered the case of a grower who repeatedly ejected visitors from his labor camps, including health care and emergency food assistance providers.⁸⁹ The grower maintained 220 migrant housing units and provided farmworkers transportation to and from the fields, health clinics, and town.⁹⁰ The court held that the farmworkers were tenants under Michigan law.⁹¹ "As tenants, the migrants are vested with the full rights of tenancy."⁹² These include the rights "to invite and associate with guests of the tenant's own choosing."⁹³

2. Union Access Rights Derived from Constitutional Law

Some jurisdictions extend union access to farmworkers further than property law jurisdictions, basing access rights in the First and Fourteenth Amendments.⁹⁴ Approaching the union access issue as a question of constitutional law requires state action since the First Amendment is only applicable to the states through the Fourteenth Amendment.⁹⁵ Under the state action doctrine, "the Constitution applies if the government affirmatively authorizes, encourages, or facilitates private conduct that violates the Constitution."⁹⁶ In order to prevail on constitutional claims, therefore, farmworkers must show that "the grower's actions are attributable to the state."⁹⁷ Most courts have found state action in two situations: first, when those seeking to enter the grower's property are arrested for criminal trespass,⁹⁸ and second, when a labor camp resembles a "company town."⁹⁹

A. JUDICIAL ENFORCEMENT EXCEPTION TO THE STATE ACTION DOCTRINE

Criminal trespass situations invoke the judicial enforcement exception to the state action doctrine, which was first recognized in *Shel-*

88. Nessel & Ryan, *supra* note 87.

89. *Folgueras*, 331 F. Supp. at 616-18.

90. *Id.* at 616-17.

91. *Id.* at 624.

92. *Id.*

93. *Id.* at 625 (citing *Denver v. Sharpless*, 191 Pa. Super. 554 (1960); *Brown v. Kisner*, 192 Miss. 746 (1942); and *Lott v. State*, 159 Miss. 484 (1931)).

94. *See* *United Farm Workers Union v. Mel Finerman Co.*, 364 F. Supp. 326, 84 L.R.R.M. (BNA) 2081 (D. Colo. 1973); *Franceschina v. Morgan*, 346 F. Supp. 833, 80 L.R.R.M. (BNA) 3470 (S.D. Ind. 1972); *Lee v. A. Duda & Sons, Inc.*, 310 So. 2d 391 (Fla. Dist. Ct. App. 1975); *Velez v. Amenta*, 370 F. Supp. 1250, 85 L.R.R.M. (BNA) 2758 (D. Conn. 1974).

95. Nessel & Ryan, *supra* note 87 at 127 (citing *Civil Rights Cases*, 109 U.S. 3 (1983)).

96. ERWIN CHERMERINSKY, *CONSTITUTIONAL LAW: PRINCIPLES AND POLICIES* 505 (Aspen Law & Business, 2002).

97. Nessel & Ryan, *supra* note 87 at 99 n.138.

98. Such situations are reminiscent of the facts in *Soldal v. Cook County*, 506 U.S. 56 (1992), in which the Supreme Court found state action where a private citizen owner of a mobile home park removed a tenant's home with the assistance of sheriff's deputies.

99. *See, e.g., Marsh v. Alabama*, 326 U.S. 501 (1946); *Petersen v. Talisman Sugar Corp.*, 478 F.2d 73, 84 L.R.R.M. (BNA) 2061 (5th Cir. 1973).

ley v. Kraemer.¹⁰⁰ The exception regards the "action of state courts and judicial officers in their official capacities" as state action.¹⁰¹ In *Bell v. Maryland*, the Supreme Court, in dictum, discussed whether state enforcement of criminal trespass laws is state action under this exception.¹⁰² The majority argued that state action is involved when the private property in question serves the public, as in the case of a restaurant.¹⁰³ The dissent disagreed, arguing that "mere judicial enforcement" of trespass statutes does not rise to the level of state action.¹⁰⁴ However, there is no definitive statement from the Court on this issue.¹⁰⁵

Farmworker advocates argue for a similar exception to the state action doctrine based solely on the fact that the state inspects and licenses migrant labor camps as required by guest worker H2-A regulations.¹⁰⁶ However, the Supreme Court rejected this argument, clearly stating, "[t]he mere fact that a business is subject to state regulation does not by itself convert its action into that of the State for purposes of the Fourteenth Amendment. . . ."¹⁰⁷

B. PUBLIC FUNCTIONS EXCEPTION TO THE STATE ACTION DOCTRINE

In *Marsh v. Alabama*,¹⁰⁸ the Supreme Court first recognized the "public functions exception" to the state action doctrine, "which says that a private entity must comply with the Constitution if it is performing a task that has been traditionally, exclusively done by the government."¹⁰⁹ In *Marsh*, Jehovah's Witnesses were allowed access to a company-owned town to distribute literature.¹¹⁰ The Court adopted a test examining whether the company town in question is open to the public generally and whether it functions any differently than any other town.¹¹¹ Privately owned towns falling within the public functions exception must comply with the Constitution, as must municipi-

100. CHEMERINSKY, *supra* note 96, at 506 (citing *Shelley v. Kraemer*, 334 U.S. 1 (1948)).

101. *Id.* (quoting *Shelley*, 334 U.S. at 14). The potentially broad reach of the exception makes it quite controversial. "If any decision by a state court represents state action, then ultimately all private actions must comply with the Constitution." *Id.* at 507.

102. *Id.* at 507 (citing *Bell v. Maryland*, 378 U.S. 226 (1964)).

103. *Bell*, 378 U.S. at 259.

104. *Id.* at 332.

105. CHEMERINSKY, *supra* note 96 at 507.

106. "In general, government licensing or regulating is insufficient for a finding of state action, unless there is other government encouraging or facilitating of unconstitutional conduct." *Id.* at 510-12 (discussing a line of cases on the issue).

107. See *Nessel & Ryan*, *supra* note 87, at 127 (citing *Jackson v. Metropolitan Edison Co.*, 419 U.S. 345, 350 (1974)). The *Jackson* court explained, "the inquiry must be whether there is a sufficiently close nexus between the State and the challenged action of the regulated entity so that the action of the latter may be fairly treated as that of the State itself." *Jackson*, 419 U.S. at 350.

108. 326 U.S. 501 (1946).

109. CHEMERINSKY, *supra* note 96 at 498-99.

110. See *Marsh*, 326 U.S. at 507.

111. See *id.* at 507-08.

palities.¹¹² The Court based this decision on the idea that “[o]wnership does not always mean absolute dominion. The more an owner, for his advantage, opens up his property for use by the public in general, the more do his rights become circumscribed by the statutory and constitutional rights of those who use it.”¹¹³

The question whether migrant labor camps constituted “company towns” was repeatedly litigated after the *Marsh* decision,¹¹⁴ until *Hudgens v. National Labor Relations Board* eliminated the need for a separate “company town” analysis and explained that the NLRA section 7 balancing test governs.¹¹⁵ Today, *Lechmere* supplies the section 7 access rights test.¹¹⁶ Therefore, while proving that a labor camp is like a “company town” can help a union meet its threshold showing of lack of access, it is no longer necessary for a union to prove that a grower’s activities rise to the level of state action.¹¹⁷

3. Public Policy Rationale for Allowing Union Access

Regardless of whether courts approach the issue of union access to migrant labor camps as one of property or constitutional law, their decisions consistently contain public policy rationales for allowing such access. In *State v. Shack*, more famous for its public policy than its property law discussion,¹¹⁸ the court considered the “concerns facing migrant workers who live in extreme isolation” as part of its balancing test.¹¹⁹ The court explained,

Property rights serve human values. . . . Title to real property cannot include dominion over the destiny of persons the owner permits to come upon the premises. Their well-being must remain the paramount concern of a system of law. Indeed the needs of the occupants may be so imperative and their strength so weak, that the law will

112. *See id.* at 508.

113. *Id.* at 506.

114. *See, e.g.*, *Petersen v. Talisman Sugar Corp.*, 478 F.2d 73, 82, 84 L.R.R.M. (BNA) 2061 (5th Cir. 1973) (holding the migrant labor camp in question was sufficiently like the company town in *Marsh* because it serviced 1,000 farmworkers with residential areas, streets, a store, eating facilities, a post office, a chapel, fire protection, sewage, and garbage collection); *Velez v. Amenta*, 370 F. Supp. 1250, 1255, 85 L.R.R.M. (BNA) 2758 (D. Conn. 1974) (expanding the definition of “company town” by explaining, “[w]hether or not Camp Windsor qualifies as a ‘company town’ within the criteria established in *Marsh* [*italics added*] . . . [i]t is the living quarters for hundreds of free citizens of this country and, therefore, the premises are more ‘public’ than ‘private’”).

115. 424 U.S. 507, 521 (1976) (also overruling *Marsh*’s successor, *Amalgamated Food Employees Union, Local 590 v. Logan Valley Plaza, Inc.*, 391 U.S. 308, 68 L.R.R.M. (BNA) 2209 (1968)).

116. *Lechmere*, 502 U.S. at 538.

117. *See id.* at 535.

118. *See, e.g.*, Joseph William Singer, *The Reliance Interest in Property*, 40 STAN. L. REV. 611, 675 (1988) (describing the New Jersey court’s creation of a public policy exception to trespass law). A February 2005 search of the LEXIS system reveals that over 100 law review articles mention the New Jersey case, with most referencing the public policy discussion.

119. Nessel & Ryan, *supra* note 87 at 128.

deny the occupants the power to contract away what is deemed essential to their health, welfare, or dignity. . . . Here we are concerned with a highly disadvantaged segment of our society.¹²⁰

These public policy concerns are firmly rooted in fact. The best and, in many cases, only place union organizers can reach farmworkers is at labor camps.¹²¹ Most farmworkers remain at the camps during their nonworking hours, since language barriers, transportation difficulties, and general poverty discourage them from exploring the towns where they live.¹²²

Furthermore, the existence of numerous federal programs aimed at helping migrant farmworkers suggests the importance of allowing access to labor camps. The congressional intent of programs such as the Legal Services Corporation Act, the Wagner-Peyser Act, and the Migrant Health Act could not be accomplished if growers could insulate their farmworkers from outside contact.¹²³ Case law recognizes the importance of free access to the administration of federal goals, calling the question "one of considerable public significance."¹²⁴

Finally, the issue of access to migrant labor camps is an increasingly important civil rights question. The issue of farmworker conditions is now viewed as part of the growing Latino civil rights movement. "The next civil rights movement in the U.S. is going to have a brown face," explains FLOC president and founder Baldemar Velásquez.¹²⁵ Student and religious groups are more involved in farmworker advocacy than in most other labor disputes¹²⁶ and consumer involvement has a greater impact.¹²⁷ Similar to the civil rights movement of the 1960s, the current farmworker movement is bringing together people from radically different backgrounds, suggesting that *State v. Shack* in no way underestimated the importance of the issues at stake.¹²⁸

120. *Shack*, 58 N.J. at 303.

121. See *Franceschina*, 346 F. Supp. at 835.

122. *Id.*

123. Nessel & Ryan, *supra* note 87 at 126, n.135 (citing 42 U.S.C. §§ 2996, 2996f(a)(2)(c) (1988) (the Legal Services Corporation Act); 29 U.S.C. § 49b (1988) (the Wagner-Peyser Act); and 42 U.S.C. § 254b (1988) (the Migrant Health Act)).

124. *Mid-Hudson Legal Servs. v. G & U, Inc.*, 465 F. Supp. 261, 267 (S.D.N.Y. 1978).

125. Sandy Smith-Nonini, *Pick Fairness: The Farm Labor Organizing Committee's Drive to Unite N.C. Cucumber Workers*, 2 UPROOTING INJUSTICE 17 (July 1999) (citing Baldemar Velásquez, FLOC president and founder).

126. "Students and farm worker advocates have played a key role in the resurgence of agricultural laborers' hopes for lives of dignity and respect." Paul Ortiz, *From Slavery to Cesar Chavez and Beyond: Farm Worker Organizing in the United States*, in *THE HUMAN COST OF FOOD: FARM WORKERS' LIVES, LABOR, AND ADVOCACY* 269 (Charles D. Thompson Jr. & Melinda F. Wiggins eds., University of Texas Press 2002).

127. For example, a boycott led by students and community advocates is credited with breaking an eight-year standoff between Chateau Ste. Michelle in Washington state and a union. *Id.* at 269-71.

128. For example, the degree of community organizing between rural farmworkers and their urban supporters has been substantial. *Id.* at 271.

4. Growers' Limited Rights to Regulate Union Access

State and federal law suggest that growers eventually will have to allow union access to their labor camps. However, allowing such access will not destroy growers' control over their own property. Growers may still establish "reasonable rules or restrictions necessary to protect their legitimate business and security interests."¹²⁹ Some state officials and courts have offered guidance regarding what will constitute "reasonable" rules or restrictions, while maintaining the proper balance between grower and farmworker rights.¹³⁰ In some jurisdictions, such as the state of Maine, the legislature has specifically declared employees' rights, which helps growers determine the scope of their own rights.¹³¹

129. 67 OP. ATT'Y GEN. MD., *supra* note 68 at 13.

130. *Id.*; see *United Farm Workers Union v. Mel Finerman Co.*, 364 F. Supp. 326, 329, 84 L.R.R.M. (BNA) 2081 (D. Colo. 1973). Some courts have been very specific. For example, one outlined five acceptable conditions for a union's access to a labor camp:

1. The [union] shall designate in writing, those of its members (not to exceed 20 in number) who are to have access to the camp. . . .
2. Of the designated representatives, no more than 10 shall be permitted in the camp at any one time.
3. The designated representatives shall not enter or remain in the camp while the migrants are at work and in any event, they shall not enter or remain in the camp between the hours of 8:30 P.M. and 7:00 A.M.
4. Ordinarily, the Court would permit the designated representatives to have access to the facilities (bunkhouse, dining hall and bath and toilet facilities) upon invitation by any occupant. Because of the nature of the facilities which the Court has heretofore described, it is not feasible for plaintiff's designated representatives to carry on their organizing efforts within the facilities without invading the privacy of those migrants who have not invited the designated representative into the facilities. Therefore, the realities of the factual situation require that the designated representatives shall not enter any of the facilities to carry on their organizing efforts.
5. The designated representatives in their organizing efforts, shall not disturb the peace and quiet of the camp, engage in coercive conduct, use abusive, obscene, or threatening language or engage in any other unlawful conduct.

Id. at 329.

131. *Consol. Cigar Corp. v. Dep't of Pub. Health*, 372 Mass. 844, 844 (Mass. 1977). The applicable portions of Massachusetts law state:

1. *Definitions*
 - C. "Visitor" shall mean any individual[s] . . . seeking to enter a farm labor camp for the purpose of contacting or communicating with one or more workers.
2. *Reasonable Rights of Visitation*: Workers living in quarters apart from the living quarters of the operator shall be entitled to receive visitors outside of regular working hours.
 - ...
 - B. The limitation on hours in subsection A shall not apply to the organizations, their agents, employees or representatives listed herein:
 - (i) Federal, State, local or other governmental agencies, departments or boards;

In Maryland, the attorney general declared unreasonable regulations that "seriously restrict . . . the legal right of migrants to receive guests and to be visited by those who seek to serve them."¹³² The state gives growers a right to "limit the frequency or duration of visits . . . [only] in the unlikely event that such restrictions are necessary to protect legitimate business or security needs."¹³³ Legitimate needs include ensuring that crops are harvested and that business is run in a safe manner.¹³⁴ As the Florida attorney general explained, while a grower may not require that all visits be monitored, he may require visitors to identify themselves and generally state their purposes if the farmworker has not already informed him that the visitor is expected.¹³⁵ However, once the grower is aware that a visitor is expected, he may not question the farmworker about the specific nature or purpose of the visit.¹³⁶

III. Requiring Growers to Allow Union Access to Farmworkers

A. Applying Union Access Law in North Carolina

Though North Carolina courts have not directly addressed the issue of union access to migrant labor camps, they currently allow access based on a property law theory and may allow access on a constitutional law theory.¹³⁷ Meeting the first requirement of the property law ap-

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- (ii) Physicians, dentists, and other medical or para-medical personnel;
 - (iii) Priests, ministers, rabbis;
 - (iv) Agencies or organizations which are funded in whole or part by governmental funds;
 - (v) Recognized charitable and social agencies;
 - (vi) Members of the press [emphasis deleted].

C. A worker may terminate a visitation . . . [but] no operator may deny a visitor access to a worker prior to such communication. . . .

4. Visitor Rights

- A. In order for an individual . . . to be regarded as a visitor, it is *not* required:
 - (i) That the worker or workers initiate the request for the visit.
 - (ii) That the visitor secure approval of the farm labor camp operator.
- B. An operator may ask a visitor for reasonable identification *but shall not deny access on this basis* [emphasis added].

Id. at 848 n.4 (quoting 13 CODE OF MASS. REGS. 825-28 (1971)).

132. 67 OP. ATT'Y GEN. MD., *supra* note 68 at 13.

133. *Id.*

134. *Id.* at 13-14.

135. *Id.* at 14 (citing *Shack*, 58 N.J. at 306; 1978 OP. ATT'Y GEN. FLA. 1666 (Apr. 26, 1978)).

136. 67 OP. ATT'Y GEN. MD., *supra* note 68 at 14.

137. Although the Supreme Court recently refused to remedy a labor violation against an illegal immigrant, the Court suggests that those in the country legally do receive the protection of U.S. laws. *See Hoffman Plastic Compounds, Inc. v. NLRB*, 535 U.S. 137, 149, 169 L.R.R.M. (BNA) 2769 (2002). *See also* *Sure-Tan, Inc. v. NLRB*, 467 U.S. 883, 891-92, 116 L.R.R.M. (BNA) 2857 (1984). "H-2A workers in the United States have a special status among migrant farm workers. They come to the United States openly and legally. They are covered by wage laws, workers' compensation, and other standards." Human Rights Watch, *supra* note 12.

proach, North Carolina law treats the farmworkers who live in grower provided housing not as employees, but as tenants.¹³⁸ As in *State v. Shack*, farmworker tenants in North Carolina have a right to possession and the covenant of quiet enjoyment.¹³⁹ These rights guarantee that farmworkers “may invite visitors at a reasonable hour for lawful purposes into the employer-provided dwelling or onto the adjacent grounds.”¹⁴⁰

Even if a farmworker has not invited union organizers, North Carolina law will infer that the visitor is an invitee when there is a “mutuality of interest” with the farmworker or when “there is mutual advantage to the parties.”¹⁴¹ This presumption has been applied to legal aid lawyers, “health care providers, educational and job training agencies, and religious organizations.”¹⁴² So long as mutuality of interests is present, “employers may not deny, delay, hinder, or interfere with visitors who are present at reasonable times . . .” and may not “demand that workers disclose information about a visit from an advocate or retaliate against a worker. . . .”¹⁴³ The North Carolina courts have been receptive to access claims based on a property rights theory.

While the North Carolina courts have not yet considered a constitutional theory of access, such an argument is possible. In a case reminiscent of *Lechmere*, the North Carolina Supreme Court denied a Vietnam War protestor’s right to solicit signatures on an antidraft petition in the parking lot of a large shopping mall.¹⁴⁴ The court cited the protestor’s “abusive” behavior of “accosting” shopping mall patrons as reason for denying access.¹⁴⁵ Though the court never explicitly stated as much, it seemed to imply that the court would protect the rights of those who peacefully protest in the public area,¹⁴⁶ a finding that would be consistent with *Lechmere*.

Furthermore, North Carolina migrant labor camps are likely to make a *Lechmere* threshold showing of no alternative access. The camps are like the “company towns” in *Marsh* and access to resident farm-

138. “As early as 1888, the North Carolina Supreme Court recognized that a landlord-tenant relationship exists between farm workers and farm owners who have provided housing to their employees.” Lori Elmer, *Farm Workers’ Rights to Visits by Legal Advocates and Other Providers*, Farm Worker Unit, Legal Services of North Carolina, available at <http://www.legalaidnc.org/Programs/FWU/Source%20Files/pdf%20files/access.pdf>. North Carolina’s attorney general, Roy Cooper, issued an opinion letter stating that migrant farm workers are tenants under North Carolina law. E-mail from Jennifer Lee, Attorney, Farm Worker Unit, Legal Aid of North Carolina, to Allison Kidd (Nov. 6, 2003) (on file with author).

139. *Id.*

140. *Id.*

141. *Id.*; *L. T. Pafford v. J. A. Jones Constr. Co.*, 217 N.C. 730, 735 (N.C. 1940).

142. Elmer, *supra* note 138.

143. *Id.*

144. *State v. Felmet*, 302 N.C. 173, 177 (N.C. 1981).

145. *Id.* at 178.

146. *See id.*

workers is not otherwise reasonably available to labor organizations like FLOC. The majority of North Carolina's migrant farmworkers live in labor camps located on growers' property.¹⁴⁷ "No Trespassing" signs often surround the camps,¹⁴⁸ which are located in "extremely remote, rural areas, which are far-removed from community centers."¹⁴⁹ "Typically, H-2A aliens have no access to telephones and postal service while residing in the labor camps."¹⁵⁰ Many farmworkers are further isolated by cultural and language barriers¹⁵¹ and often depend upon the grower for transportation and shop in the grower's store.¹⁵² Some workers are in the country illegally or depend upon a single grower to maintain their work visas and, ultimately, their ability to stay in the country.¹⁵³ Those workers "will put up with enormous amounts of abuse to maintain that relationship with the employer."¹⁵⁴

Prior to their September 2004 agreement, some growers who work for Mt. Olive denied FLOC access to North Carolina farmworkers.¹⁵⁵ FLOC organizer Vicente Rosales reported to Human Rights Watch,

he and two other FLOC representatives visited the farmworker camp of a North Carolina Growers' Association member employer. The employer was annoyed by our arrival . . . [and she] threatened . . . that if we did not leave, she would call the police, and she told us that we were on her property and that if we wanted to speak with her, we should call her beforehand so that she could be ready for us and that

147. Legal Aid of North Carolina, *Access*, *supra* note 17. For an in-depth discussion of the poor quality of farmworker housing, see Carter & Rosenthal, *supra* note 17, at 781–98.

148. *Id.* Farmer-provided housing options include "old farmhouses, trailers, and concrete and wooden barracks." Legal Aid of North Carolina, *Farm Worker Housing*, available at <http://www.legalaidnc.org/Programs/FWU/ncfarhousing.htm>. The conditions of such housing often are substandard, with overcrowding, faulty appliances, serious structural problems, and exposure to pesticides. While the Department of Labor is responsible for inspecting farmworker housing, it lacks the resources necessary to inspect the estimated 2,000 North Carolina labor camps before agriculture workers inhabit them. *Id.* "Ironically, because migrant housing is regulated by federal and state law, many . . . [farmers] provide no housing [at all] and, as a result, migrant workers set up shanty-camps" on the farmer's property. LeRoy & Hendricks, *supra* note 67, at 501.

149. The Legal Services Corporation, *The Erlenborn Commission Report*, 15 GEO. IMMIGR. L.J. 99, 123 (Fall 2000).

150. *Id.*

151. Legal Aid of North Carolina, *Farm Workers*, *supra* note 6.

152. *Id.*; Legal Aid of North Carolina, Migrant and Seasonal Agricultural Worker Protection Act, available at <http://www.legalaidnc.org/Programs/FWU/AWPA.htm>.

153. See Legal Aid of North Carolina, *Farm Workers*, *supra* note 6; Legal Aid of North Carolina, *Access*, *supra* note 17. One North Carolina farmworker reports that when he asked his employer for better working conditions, the farmer responded, "You're causing me a lot of problems. . . . If you continue to create lots of problems, you'll go back to Mexico." Olson, *supra* note 9.

154. HELP WANTED, *supra* note 12 (quoting Alice Tejada, Legal Services of North Carolina).

155. See Human Rights Watch, *supra* note 12.

she would also have to be present during the interviews with the workers.¹⁵⁶

Another growers' association member summoned two police officers to his camp when FLOC president and founder Baldemar Velásquez and three other FLOC organizers visited to speak with resident farmworkers.¹⁵⁷ The FLOC organizers were arrested when they refused to leave the labor camp.¹⁵⁸

The North Carolina Growers' Association (NCGA) strongly influences growers' reactions to union representative visits. The NCGA "is a trade association that aids its members in obtaining seasonal farm labor. . . ."¹⁵⁹ Growers pay annual dues to the association and, in return, the NCGA locates and arranges for the hiring of H2-A workers.¹⁶⁰ The NCGA also assists growers with the legal matters that can arise from hiring H2-A workers.¹⁶¹ The association claims that, in addition to "ensuring [g]rowers' initial compliance with the H2[-]A hiring requirements . . . [i]t continues to ensure that the workers hired are transported into the United States, housed, trained, supervised, paid, and transported out of the United States."¹⁶²

Until it signed the September 2004 FLOC agreement, denying union access to member labor camps appeared to be NCGA policy. Until 2001, the standard NCGA contract with H2-A farmworkers contained a clause restricting farmworkers' right of possession and the covenant of quiet enjoyment, stating that "[n]o tenancy in such housing is created; employer retains possession and control of the housing premises at all times. . . ."¹⁶³ The NCGA "Work Rules" stated that "the employer reserves the right to exclude any person(s) from visiting housing premises."¹⁶⁴ Although NCGA founder Stan Eury added a waiver provision giving farmworkers the ability "to exempt themselves from this tenancy condition . . . by filing a request of waiver in writing with the North Carolina Growers Association prior to inhabiting the housing facility and beginning work," few farmworkers were able to fully understand

156. *Id.*

157. *Id.*

158. *Id.*

159. U.S. Dep't of Labor v. N.C. Growers Ass'n, 2004 U.S. App. LEXIS 15850, at n.1 (4th Cir. 2004).

160. *Chao v. N.C. Growers Ass'n*, 280 F. Supp. 2d 500, 503 (W.D.N.C. 2003), *rev'd*, *N.C. Growers Ass'n*, 2004 U.S. App. LEXIS 15850.

161. *N.C. Growers Ass'n*, 2004 U.S. App. LEXIS 15850, at n.1.

162. *Chao*, 280 F. Supp. 2d at 504.

163. *Id.* The U.S. Department of Labor approved the NCGA's contract containing this clause and North Carolina police departments enforced it. *Id.* Jennifer Lee, an attorney with Legal Aid of North Carolina's Farm Worker Unit, reports that this language now has been removed from the contracts. Lee, *supra* note 138.

164. Lee, *supra* note 138.

the documents they signed.¹⁶⁵ The expectation that farmworkers not only would understand the documents they signed, but also understand and affirmatively assert their tenancy rights against those whose favor is necessary to stay in the country, ignored the reality of the H2-A program.

When H2-A workers arrived in North Carolina prior to the signing of the September 2004 FLOC agreement, the NCGA portrayed union organizers as “enemies.”¹⁶⁶ The association reportedly required workers to publicly throw away their Legal Services Corporation “Know Your Rights” booklets before they were allowed to receive the Growers’ Association’s “Understanding the Work Contract” booklet. The NCGA booklet warned

FLS [Farmworker Legal Services] has a hidden motive when they approach you. They say that they are your friends and they are concerned about your rights and well being, but in reality their motive is to destroy the program which brings you to North Carolina legally . . . FLS discourages the growers with excessive suits which are for the most part without merit. The history of FLS shows that the workers who have talked with them have harmed themselves. Don’t be fooled and allow them to take away your jobs.¹⁶⁷

Many of these policies may change now that the NCGA has signed a collective bargaining agreement with FLOC, especially considering the fact that the NCGA has agreed to appointing a representative at each to serve as a liaison with the union.¹⁶⁸ If the NCGA does not change its policies, the limits the NCGA has placed on union access, combined with the isolation and dependence of North Carolina farmworkers, suggest that North Carolina’s courts would enforce union access rights at migrant labor camps.

B. *Mt. Olive’s Role in Securing Union Access Rights*

During the boycott, Mt. Olive protested that it did not have the power to impose upon its growers the changes FLOC demanded¹⁶⁹ and argued that the company does not directly employ farmworkers.¹⁷⁰ Mt. Olive contracts with growers for the cucumbers it needs by proposing

165. *Id.*

166. *See id.*

167. *Id.*

168. *See* Farm Labor Org. Comm., Precedent, *supra* note 24.

169. *See* Mt. Olive Pickle Company, Position Statement on the Activities of the Farm Labor Organizing Committee (2002), available at <http://www.mtolivepickles.com/Company/FLOC001.html> (last visited Feb. 8, 2004) (hereinafter Mt. Olive Pickle Co., Position).

170. *See* Mt. Olive Pickle Co., Company, *supra* note 18. The authors of a 1968 report examining a proposal to include farm workers in the NLRA warned that growers would “delegate the harvesting of crops to a large labor contractor, and then argue that . . . [they] are not . . . employer[s] at all—that the striking employees can only picket at the downtown office of the labor contractor, not at the farms where the work is being done.” Thompson, *supra* note 55 at 6.

the prices it will pay for cucumbers several months before planting begins for the season.¹⁷¹ After the company has negotiated contracts with enough growers to meet its cucumber demand, the growers hire their own employees to plant and harvest the crops.¹⁷²

Despite its statement to the contrary, Mt. Olive exerts great influence over North Carolina growers. Mt. Olive began using this influence to initiate positive change in 2003, when it first required its North Carolina suppliers and growers to sign Statements of Compliance indicating that they are following all applicable federal and state laws.¹⁷³ Mt. Olive also made it clear that the Statements would be enforced, requiring suppliers and growers to notify it if any government agency investigated their employment practices and threatening “appropriate action regarding issues of non-compliance, including, but not limited to, cancellation . . .” of their contracts.¹⁷⁴ In 2004, Mt. Olive expanded its compliance statement program to include nonexclusive suppliers.¹⁷⁵

Even since signing the September 2004 agreement with FLOC,¹⁷⁶ Mt. Olive continues to require NCGA suppliers and growers to sign Statements of Compliance.¹⁷⁷ Although the Mt. Olive Statements do not specifically address union access to migrant labor camps,¹⁷⁸ a com-

171. Mt. Olive Pickle Company, Mt. Olive's Response to the Tactics of the Farm Labor Organizing Committee (2002), at http://www.mtolivepickles.com/flash/well_floc_tactics.html (last visited Feb. 8, 2004).

172. See *id.* In what it called “a federal pickle case,” the U.S. Court of Appeals for the 7th Circuit described the hiring operations of one pickle farmer as follows:

The pickles are handpicked, usually from July through September, by migrant families from out of state. Sometimes the children, some under twelve years of age, work in some capacity in the fields alongside their parents. Many of the migrant families return each harvest season by arrangement with the defendants, but, each year, other migrant families often come for the first time from Florida, Texas and elsewhere looking for work. The defendants would inform the families, either orally or sometimes in writing, of the amount of compensation they were to receive. Compensation is set by the defendants at one-half of the proceeds the defendants realize on the sale of the pickles that the migrants harvest on a family basis. Toward the end of the harvest season, when the crop is less abundant and, therefore, less profitable, the defendants offer the migrants a bonus to encourage them to stay to complete the harvest, but some leave anyway.

U.S. Dep't of Labor v. Lauritzen, 835 F.2d 1529, 1531–32 (7th Cir. 1987).

173. See Mt. Olive Pickle Co., Compliance, *supra* note 29.

174. Mt. Olive Pickle Company, Crop Supplier Statement of Compliance: 2004 Season (2004), available at <http://www.mtolivepickles.com/Company/FLOC008a.html> (last visited Feb. 22, 2005) (hereinafter Mt. Olive Pickle Co., Supplier).

175. Mt. Olive Pickle Co., Compliance, *supra* note 29.

176. In its September 2004 agreement with FLOC, Mt. Olive specifically agreed to allow FLOC to enter the territory of any supplier competing with those in the NCGA, including those outside North Carolina. McKinnon, *supra* note 27.

177. See Mt. Olive Pickle Co., Compliance, *supra* note 29.

178. Growers' agreement states, “to the best of my knowledge, I am in compliance with all applicable federal and state farm employment rules and regulations including, but not limited to, those listed on the back of this form.” Mt. Olive Pickle Company, Grower Statement of Compliance: 2004 Season (2004), available at <http://www.mtolive>

pany spokesperson explains, "it is our general understanding that workers have the right to have visitors. We encourage our suppliers and their growers to not interfere with union representatives and advocates who visit workers in their camps. . . ." ¹⁷⁹ North Carolina law suggests that growers must allow union organizers access to migrant labor camps;¹⁸⁰ therefore the Statements of Compliance should be amended to specifically include a provision granting unions access and setting reasonable standards to govern that access.

FLOC President Baldemar Velásquez opines, "[i]t's the agricultural industry, not politicians, that will improve the deplorable conditions of immigrant laborers. . . . Mt. Olive Co.'s leadership position in the agricultural industry allows it to initiate positive changes. We know that once Mt. Olive Co. leads in this direction, other companies will follow."¹⁸¹ Indeed, Mt. Olive's decision to require Statements of Compliance is but one example of agricultural companies' ability to initiate positive change—an example other companies should follow. In addition, the Mt. Olive model suggests a new strategy for union organizers who have not yet been successful at winning agreements like the one FLOC won in North Carolina—encouraging companies to require signed statements of compliance with a recognition of farmworkers' associational rights.

IV. Conclusion

The Mt. Olive Pickle Company set a good example when it required suppliers and growers to "sign[] Statements of Compliance . . . indicat[ing] that . . . [they] are in compliance with all applicable federal and state laws governing farmworker employment. . . ." ¹⁸² Mt. Olive and other similarly situated companies should demand that their suppliers and growers sign Statements of Compliance that specifically include a union access provision. The provision would recognize workers' right to invite union representatives to labor camps and would define those representatives' rights while at the camps. Guaranteed access to farmworkers is far less than what farmworker unions like FLOC demand and much more than most companies are willing to offer. However, an agreement on access is critical for compromise between the two, and

pickles.com/Company/FLOC008b.html (last visited Feb. 22, 2005) (emphasis added); Mt. Olive Pickle Company, Supplier, *supra* note 177 (emphasis added). See also Mt. Olive Pickle Company, United States and North Carolina Farm Regulations (2004), available at <http://www.mtolivepickles.com/Company/FLOC008d.html> (last visited Feb. 22, 2005) (listing the state and federal laws parties to the Statements of Compliance must follow).

179. E-mail from Lynn Williams, Community Relations, Mt. Olive Pickle Company, to Allison Kidd (Aug. 19, 2004) (on file with author).

180. See *supra* Part III.A.

181. Farm Labor Org. Comm., FLOC, *supra* note 19.

182. Mt. Olive Pickle Co., Compliance, *supra* note 29.

specifically appears to be a necessary part of the Mt. Olive promise to require its suppliers and growers to comply with federal and state law.

Federal and state courts have borrowed standards from established union access rules in the NLRA context to allow unions access to farmworker labor camps. While the courts differ in their rationales, the results usually are the same—allowing union access where farmworkers are isolated and the union has no other reasonable means of communicating with workers.¹⁸³ Strong public policy concerns support union access rights, ensuring that a grower's property interests do not tread upon the welfare and dignity of the farmworkers laboring on that property.¹⁸⁴

Whether supported by a property or constitutional rights theory or simple public policy, the courts should specifically recognize the rights of unions to access labor camps, particularly those inhabited by H2-A workers. North Carolina can be a model for resolving similar conflicts in other states. Until then, all companies like Mt. Olive should encourage and help enforce any agreement between growers and farmworkers granting unions, legal services providers, health care workers, and others access to labor camps. Admittedly, access alone is a small step; however, it is a vitally important one. It will not be until farmworkers have a right to organize and bargain with growers without fear of losing their jobs or being ejected from the country that they will have reason to sing "*de colores, de colores. . .*"¹⁸⁵

183. See *supra* Part II.B.

184. See *supra* Part II.B.3.

185. See *supra* note 1.

